



Some Recent Incidents In India

- ❑ A '15-year-old girl' courts a 16-year-old boy through a popular Internet chat site. The boy runs away from home to Mumbai only to find out that the 'girl' was, in fact, a 30-year-old man. The man sexually abuses the boy, steals his money and beats him up severely.
- ❑ A 14-year-old boy raked up bills of thousands of rupees on his father's credit card after he got addicted to viewing pornographic Web sites.
- ❑ A 13-year-old girl created a virus after downloading a free "Virus Development Kit" off the Internet.
- ❑ A class 10 student who was taunted by his classmates for having a pockmarked face put up a pornographic Web site and displayed 'morphed' nude images of his classmates and teachers.

More info on cyber crime is available at:
<http://www.cyberpolicebangalore.nic.in/>
<http://www.mumbaicyberlab.org/>

Cyber Crime And The Police

The crimes mentioned above are enough to put you off logging ever again. But wait. Our Police are gearing up and getting their act together. "Although absent initially, law enforcement agencies in India today are taking a lot of initiative to make themselves aware about cyber crimes, their investigation and prevention," assures Debasis Nayak, director, Asian School of Cyber Laws, Pune.

He adds that active steps to remedy the situation are being taken. "The police departments of most states are in the process of establishing specialised cyber crime cells to tackle this. States such as Maharashtra, Goa, Karnataka and Delhi have already established cyber crime cells," says Nayak.

And this is not untrue. The Police have even gone so far as to employ the services of young geniuses—as young as 17 years old—to educate their force about the world of cyber crime, and how to track and tackle it. Recent initiatives are indeed a heartening sight, and a welcome change in the attitude of the Police.

This, however, is not enough. There are a lot of policemen in the country, and while it may not be possible to train them all, a larger section needs to be educated, given the constantly changing nature of cyber crime. Warns Duggal, "The National Police Academy, Hyderabad, is doing some work in this regard, conducting courses on cyber crime. But given the number of police officers in the country, the training efforts can only reach a certain

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number, and not the entire force. There is an urgent need to ensure that the government sets up allcoates a separate budget for training officials and police officers in various aspects relating to cyber crime investigation, prosecution and registration."

Word Of The Law

Now that it has been widely accepted that the IT Act of 2000 is inadequate in protecting an aggrieved party (individual or corporate), what are the changes that can be brought about?

"I'm of the firm opinion that the Indian IT Act, 2000 needs to have drastic amendments incorporated in order to be in sync with the changing needs of the times. It is important to remember that the IT Act, 2000 was a law that was basically meant for promoting e-commerce. It was passed in 2000 and came into effect on 17 October, 2000. It is an accident of history that a chapter on cyber crime entitled 'offences' got included in the legislation", laments Duggal.

He goes on to suggest changes in the form of a separate cyber law. "I believe that India needs a distinct and separate law on cyber crimes. This should be a special law that would supplement the Information Technology Act of 2000 and the Indian Penal Code as amended. This is because cyber crime is a distinct subject and would require distinct treatment, per se, from law enforcement agencies. Further, amendments should be made to ensure that people are able to effectively register their complaints as cases with the Police."

Duggal goes on to add: "There is only limited coverage of cyber crimes under the Indian IT Act, 2000 as also under the Indian Penal Code. Consequently, we are now beginning to see a number of situations where people are committing cyber crimes with impunity because there is no legal provision under which to book them. It's here that there is an urgent need for India to enact a distinct cyber crime law. This law would need to be supplemental in nature to the Indian Penal Code as also to the Information Technology Act, 2000."

Going one step further, Duggal also advocates the need to include various techniques relating to cyber forensics and cyber crime investigation, prosecution, and trial. "These need to be properly and appropriately imparted to law enforcement agencies in the

country. In our country, where a posting to cyber crime cell is invariably perceived as a punishment posting, a lot of effort needs to be taken towards eradicating the current mindset to the entire issue of cyber crime registration, investigation and prosecution."

Strong suggestions that indeed need to be considered, but what will happen, only time can tell. ■

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